Tentative Rulings
July 17, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (https://www.sb-court.org/divisions/civil/civil-tentative-rulings) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

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19. *Vasquez v. Ford Motor Co., et al,* Case No. CIVSB2428108
Defendant's Motion to Compel Deposition of Plaintiff
7/17/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**. Parties will meet and confer and reach mutually agreeable dates within twenty (20) days. Alternatively, the parties may stipulate at hearing to a mutually agreeable date for the deposition. No sanctions were requested.

Case Summary

This is a lemon law case. Plaintiff contends that he purchased the subject vehicle and that it was manufactured, distributed, and warrantied by Defendant. Despite being covered by warranties, he alleges that Defendant failed to repair the vehicle in a reasonable number of attempts and failed to provide a replacement or restitution. As such, in September of 2024, he filed suit for (1) violation of Section 1793.2(d) of the Song-Beverly Consumer Warranty Act; (2) violation of section 1793.2(b) of the Act; (3) violation of Section 1793.2(a)(3) of the Act; (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair (as to Sunrise).

Relevant here, on January 9, 2025, Defendant first served a notice of the deposition of Plaintiff. The deposition was initially set for February 24, 2025. However, on February 21, 2025, Defendant served objections citing the unilateral setting of the date, among other things, but provided no alternative dates. This motion followed.

Analysis

Defendant Ford is seeking to obtain an order to compel Plaintiff to sit for his deposition. However, Plaintiff is not *per se* refusing to do so. However, Defendant has a right to be concerned: No deposition has occurred; trial is less than one month away; and the only dates presently offered by Plaintiff (August 16, 17, and 18) are after trial. An expression of willingness to be deposed is not equivalent to completing the deposition, particularly after repeated notices and nonappearances.

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20. *Lewis v. Trenier, et al,* Case No. CIVSB2524508
Defendant's Demurrer to First Amended Complaint
7/17/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **SUSTAIN**, with thirty (30) days leave to amend, because the First Amended Complaint's pleadings are at least uncertain and appear to indicate a statute of limitations concern. Separately, the Court would also **SUSTAIN**, again with leave to amend, as to the fourth cause for Constructive Trust. The Court **OVERRULES** as to the other arguments for demurrer.

Case Summary

This is a quiet title action. Currently, Defendant Trenier – who is Plaintiff's sister – is on the property's title. Plaintiff alleges he is the original purchaser of the property and its rightful owner. However, in late 2005, Plaintiff was incarcerated, and he alleges that he let Defendant rent the property due to his unavailability. Around April 202, 2006, Plaintiff executed a grant deed on the property in favor of Defendant. Plaintiff alleges that the parties agreed that Defendant would transfer the property back to him when he was released and available, but Defendant refuses to make such a transfer now. As such he filed suit on August 29, 2025. The currently operative First Amended Complaint (FAC) alleges (1) quiet title; (2) declaratory relief; (3) fraud; (4) imposition of constructive trust; and (5) unjust enrichment.

Analysis

Defendant demurs on four separate grounds: (1) the FAC fails to state facts sufficient to constitute a cause of action; (2) the FAC is uncertain, ambiguous, and unintelligible; (3) the FAC is barred by the statute of limitations; (4) the pleading is barred by the statute of frauds.

Statute of Limitations – Code of Civil Procedure section 338(d) sets out that fraud claims have a three-year limitations period; the cause of action does not accrue until the aggrieved party's discovery of the facts constituting the fraud or mistake. Because the remaining claims rely on the same fraud-based facts, the derivative property-related claims share the same three-year period. (*Krusi v. S.J. Amoroso Constr. Co*. (2000) 81 Cal.App.4th 995, 1005; *Ankoanda v. Walker-Smith* (1996) 44 Cal.App.4th 610, 615.)

It bears repeating here that Plaintiff alleged a grant deed conveying the property to Defendant was recorded on April 24, 2006, when he was incarcerated. (FAC, ¶¶13, 14.)

Plaintiff received a power of attorney document in 2015 that was never signed. (FAC, ¶17 & Exh. D.) Defendant argues this triggered a duty of reasonable inquiry including checking public title records. Thus, the fraud claim accrued in August 2015 and is, therefore, time-barred along with the remaining claims.

In opposition, Plaintiff refutes the limitations demurrer by pointing to allegations “that he did not discover the actual transfer of the property until January 2025. [Complaint ¶18-19].” (Plaintiff Oppo. 2:6-7.) It is unclear what Plaintiff means by “actual transfer of the property” and in this regard, the FAC and Plaintiff’s argument are both uncertain (see *infra*). It is possible that Plaintiff may be able to allege additional facts that clarify how and what he discovered in January 2025 and why his discoveries at that time should be the controlling accrual date instead of August 2015 when he received the power of attorney document. At this point, however, the pleadings seem to indicate that the matter is time-barred.

<u>Uncertainty –</u> The analysis about the limitations demurrer dovetails with the uncertainty demurrer because of confusing and unclear allegations about the property. For example, the allegation that Plaintiff’s uncle discovered in January 2025 that the property was in his name instead of Defendant’s name. (FAC, ¶18.) It is unclear to what this allegation pertains or establishes. Then, paragraph 19 starts: “Uncle, Louis Hollingsworth he showed [sic]. Went to the police department and informed them of the issue. Plaintiff discovered Defendant prepared a grant deed even before Plaintiff signed the deed on April 24, 2006.” (FAC, ¶19.) This disjointed paragraph is uncertain because it appears incomplete and contradicts an allegation that a deed was recorded, not signed, on April 24, 2006. (FAC, ¶14.)

Paragraph 19 concludes with a reference to a grant deed recorded on February 15, 2006, purporting to convey the property from Plaintiff and his mother to Defendant. (FAC, Exh. E.) It is uncertain and confusing as to what his uncle showed him, what they told the police, how that is relevant to the property ownership, and how it relates to the February 15th recorded deed. It is possible that Plaintiff may be able to amend his pleading to address these uncertainties.

<u>Constructive Trust (4th Cause) –</u> Constructive trust is not an independent cause of action but a type of remedy for some categories of underlying wrong. (*Glue-Fold, Inc. v. Slautterback Corp*. (2000) 82 Cal.App.4th 1018, 1023, FN.3, citing to 5 Witkin, Cal. Procedure (4th ed. 1997) Pleading, § 796, p. 252.) Civil Code section 2224 provides that “[o]ne who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.”

Defendant argues demurrer is proper because constructive trust is not an independent cause of action and, to the extent it is pleaded as a cause of action, it fails as time barred just like the underlying fraud claim. If Plaintiff is able to amend his pleading to cure the issues addressed above regarding when he discovered facts supporting the fraud claim, then he would be able to pursue a remedy based on constructive trust.

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21. *Cal. Desert Land Conservancy v. The Ohio Casualty Ins. Co., et al,* Case No. CIVSB2518010
Defendant Hartford's Demurrer to the First Amended Complaint
4/3/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **SUSTAIN** Defendant Hartford's demurrer to the third (breach) and fourth (declaratory relief) causes with thirty days leave to amend.

Case Summary

This litigation relates to the denial of insurance coverage. Generally, Plaintiff alleges that it employed a finance manager who deposited 27 checks into his own accounts. Defendant Ohio had issued a policy to Plaintiff during the relevant period that purports to cover losses resulting from the dishonest acts of employees. However, it only covered if losses were incurred during the policy versus loses only *discovered* during the policy. In this case, Defendant Ohio determined that only 4 of the 27 checks were posted when the policy was in effect. Thus, it offered to pay for those four transactions, plus costs and expenses. Problematically for Plaintiff, while it had a prior policy with Defendant Hartford, it only declined coverage because the loss was discovered *after* its policy ended.

Plaintiff alleges that Defendant S. Philips was Plaintiff's agent/ broker. In February of 2022, Plaintiff alleges, it paid Defendant S. Philips to renew its Hartford policy. However, about a month later, Plaintiff was required to submit a new application for a new policy from Philadelphia Insurance Companies. It provided the new application. However, it alleges that it then discovered its renewal check was used to purchase the Ohio policy. Plaintiff further alleges that it was never apprised of the risks in losing continuity of coverage.

As such, Plaintiff filed suit on June 24, 2025. On November 14, 2025, it filed the operative First Amended Complaint (FAC), alleging (1) breach of contract as to Ohio; (2) declaratory relief as to Ohio; (3) breach of contract as to Hartford; (4) declaratory relief as to Hartford; and (5) professional negligence against S. Philips.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Analysis

Defendant Hartford generally demurrers as to the third (breach of contract) and fourth (declaratory relief) causes of action in the FAC, alleging Plaintiff fails to state sufficient facts to constitute these causes of action and that the claims against Hartford are time-barred as the Hartford Policy contractually obligates Plaintiff to file suit against Hartford within two years from the date that Plaintiff discovers the subject loss.

Time Barred – Defendant Hartford argues the subject policy has a two-year limitation period, which provides that an insured may not bring any legal action against it two years after the date that the insured discovers the loss. Defendant Hartford contends that since Plaintiff filed suit against it on November 14, 2025, and discovered the loss in June of 2023, the instant claims are time-barred.

Plaintiff argues that the FAC alleges that Defendant Hartford did not deny coverage for the subject incidents until October 30, 2024, and, as such, accrual of the subject limitation was not triggered until after that date. Plaintiff contends discovery of a loss does not establish accrual where the claim turns on the insurer's coverage position. Defendant Hartford contends the policy's suit limitation clearly has a different trigger event than the one proposed by the Plaintiff.

Here, it is undisputed that Paragraph P of the Hartford Policy, attached as Exhibit B to the FAC, states, in pertinent part, as follows:

> The "Insured" may not bring any legal action against the Insurer involving loss:
> 1. unless the "Insured" has complied with all the terms of this Policy; and
> 2. until 90 days after the "Insured" has filed proof of loss with the Insurer; and
> 3. unless such action is brought within 2 years from the date that the "Insured" discovers such loss. (Emphasis added.)

"Discovery of the loss" has been variously defined as occurring when "facts giving rise to a later claim are discovered by the insured, when a claim is made against the insured that may result in a judgment, or when a claim or judgment is settled." (*Pacific-Southern Mortgage Trust Co. v. Insurance Co. of North America* (1985) 166 Cal.App.3d 703, 709.) While the subject limitation period is shorter than that under Code of Civil Procedure section 337, which would apply in this case absent the provision, California courts have consistently upheld limitation periods in insurance policies which are shorter than the statutory period. (Ibid. Internal citations omitted.) The Hartford Policy states, in pertinent part, as follows:

> Discovery of loss occurs when a member of the Risk Management Department or any officer, manager, or supervisor of the "Insured" first becomes aware of facts which would cause a reasonable person to assume that a loss covered by this Policy has been, or may be incurred even though the exact amount or the details of the loss may not then be known.

> Discovery also occurs when the “Insured” receives notice of an actual or potential claim against the “Insured” alleging facts, which if true, would constitute a covered loss under this Policy.

Based on the foregoing terms, it is clear the “discovery of loss” event as defined occurred when Plaintiff discovered the missing money from its bank account after an audit that occurred in June of 2023. No facts are pleaded that would suggest a later date for the “discovery of loss.” As the FAC naming Defendant Hartford in this action was not filed until November 14, 2025, I recommend the court find Plaintiff’s claims are time-barred under the terms of the parties’ agreement.

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